CORPORATE POLICY REVIEW REPORT

Privacy Policy & Data Protection — Aditya Birla Capital Ltd.

STUDENT NAME: VAISHNAVI K

REGISTER NUMBER: 5272510220

COURSE: B.COM (FINTECH WITH AI)

ACTIVITY TITLE: CORPORATE POLICY REVIEW REPORT

ORGANIZATION/COMPANY REVIEWED: ADITYA BIRLA CAPITAL LTD. (ABCL)

POLICY NAME: PRIVACY POLICY & DATA PROTECTION

1. INTRODUCTION

1.1 About the Organization

Aditya Birla Capital Limited (ABCL) is a listed, systemically important non-deposit taking Non-Banking Financial Company (NBFC) and the holding company for the financial services businesses of the Aditya Birla Group. ABCL and its subsidiaries and joint ventures offer a comprehensive suite of financial solutions spanning loans, investments, insurance, and payments to customers across their financial lifecycle. The company operates at a very large scale, with over 68,400 employees, more than 1,740 branches, over 200,000 agents and channel partners, aggregate assets of around INR 5.91 lakh crore, and a consolidated lending book of about INR 2 lakh crore.

1.2 Introduction to the Selected Policy

The policy selected for this review is ABCL's Privacy Policy, which sets forth the reasonable security practices and procedures adopted by Aditya Birla Capital Group Companies for the collection, storage, use, processing, and disclosure of the personal data of customers and users who interact with ABCL's website, mobile application, and other digital platforms, or who avail its loan, investment, insurance, and payment products and services. The Policy applies collectively to fifteen named ABC Group Companies, reflecting the scale and complexity of ABCL's group structure.

1.3 Purpose of the Review

The purpose of this review is to understand the scope, objectives, and key provisions of ABCL's Privacy Policy, particularly its approach to data collection, consent, usage, sharing, retention, and security, and to examine how it supports India's evolving data protection and digital governance framework. Given that ABCL processes highly sensitive financial, KYC, and personal information for millions of customers, this review also evaluates how effectively the Policy protects individual privacy rights while enabling the company's digital financial services.

2. POLICY OVERVIEW

2.1 Name and Nature of the Policy

The policy under review is the Privacy Policy of Aditya Birla Capital Limited, a data governance and consumer protection policy that governs how personal data is handled across the ABC Platform, defined to include ABCL's website and sub-domains, mobile application, and m-site. It is a customer-facing, legally binding document that must be read together with ABCL's Terms and Conditions, which customers and users agree to when registering for or availing the company's services.

2.2 Scope of the Policy

The Policy applies to the collection, use, and disclosure of Personal Information provided by any "User", defined to include both customers and general users of the ABC Platform, whether provided directly through the website or mobile application, or otherwise at the time of client acceptance, registration, or application for ABCL's products, services, or facilities. It expressly covers fifteen named ABC Group Companies, including Aditya Birla Capital Limited, Aditya Birla Housing Finance Limited, Aditya Birla Sun Life Insurance Company Limited, Aditya Birla Sun Life AMC Limited, Aditya Birla Money Limited, and several other group entities.

2.3 Employees and Stakeholders Covered

- Customers and Users who register on, or interact with, ABCL's website, mobile application, or m-site
- Individuals undergoing onboarding or Know Your Customer (KYC) verification for loans, investments, or insurance products
- Third-party service providers and partners with whom ABCL shares personal data for the purposes stated in the Policy
- Regulators, law enforcement agencies, and authorities such as NSDL, CDSL, UIDAI, and CKYCR, to whom data may be disclosed for authentication and compliance purposes

2.4 Key Objectives of the Policy

- To clearly explain what categories of personal data ABCL collects and why it is collected

- To set out the lawful purposes for which personal data is used, processed, and shared
- To describe the security practices adopted to protect personal data from unauthorized access or disclosure
- To inform users of their privacy rights, including the right to review, correct, or request erasure of their data
- To support ABCL's compliance with applicable Indian data protection and financial sector regulations

3. KEY PROVISIONS OF THE POLICY

3.1 Data Collection

The Policy identifies eight broad categories of personal data ABCL may collect: Identity Data (name, date of birth, voice/video recordings, gender, location, contact details); Profile Data (username and password); Financial and Insurance Data (bank account details, income, investments, card information, insurance coverage and claims); Purchase and Payment Data (invoices, payment records and methods); Marketing and Communications Data (service requests, feedback, survey responses, communication preferences); KYC Data (Aadhaar, Passport, Driving Licence, Voter ID, PAN, and other RBI-recognised Officially Valid Documents); Technical Data (IP address, device information, location, operating system); and Usage Data (site activity, clicks, time spent, page views). Notably, the Policy explicitly states that ABCL does not access a user's phone contacts, call logs, or telephony functions, and does not collect biometric data, though one-time camera, microphone, or location access may be sought, with explicit consent, solely for onboarding or KYC checks.

3.2 Consent

By availing ABCL's Services, users confirm that they have read and agreed to be bound by the Policy, and by providing consent, or explicit consent where digital lending services are involved, users acknowledge that ABCL will collect, store, use, and disclose their personal data as described in the Policy. The Policy notes that where users choose not to provide certain required

data, particularly data required for KYC checks, ABCL may be unable to perform its obligations or provide the requested Services, effectively tying consent to service accessibility.

3.3 Data Usage

Personal data collected is used for a defined set of purposes, including fulfilling service requests, delivering administrative notices and alerts, joint marketing with group companies, market research and troubleshooting, improving the functionality and quality of Services, managing the customer relationship, marketing and advertising, responding to legal claims or court orders, fraud prevention and detection, and ensuring compliance with applicable law. The Policy also permits use of aggregated or anonymised statistical data for any purpose, treating it as personal data only when it is combined with other information in a way that could identify the individual.

3.4 Data Sharing and Disclosure

ABCL may share personal data with other corporate entities, affiliates, partners, merchants, and third parties as permitted by law, for purposes including providing access to Services, enhancing customer experience, meeting legal obligations, preventing fraud, and authenticating KYC information with authorities such as NSDL, CDSL, UIDAI, and CKYCR. Where a user avails a loan or lending service, personal data may additionally be shared with specific third parties connected to that loan, with a published list of such third parties made available separately. The Policy also states that personal data may be disclosed without consent when required by law, a court, or a government or regulatory authority.

3.5 Data Retention

Personal data is retained for as long as necessary to fulfil the stated purposes of collection, in compliance with applicable law or statutory limitation periods, considering factors such as the amount, nature, and sensitivity of the data, the risk of harm from unauthorised use, and whether the purpose could be achieved through other means. Where there is no continuing reason to retain personal data, the Policy commits to deleting or anonymising it in line with ABCL's internal data destruction protocols.

3.6 Data Security

ABCL states that it implements reasonable security procedures, encompassing managerial, technical, operational, and physical security controls proportionate to the sensitivity of the information being protected, along with dedicated processes to prevent unauthorised use of personal data, carry out secure data destruction, and manage security breaches relating to personal data.

3.7 User Rights

Subject to applicable law, users are granted three principal rights under the Policy: the right to review and correct inaccurate or deficient personal data; the right to request erasure of personal data, subject to ABCL's need to retain data to continue providing Services or as required by law; and the right to withdraw consent at any time. Requests can be made to ABCL's designated Data Protection Officer, and the Policy commits to responding within 30 days of receiving a request, or notifying the user if a response is delayed.

4. COMPLIANCE AND GOVERNANCE ANALYSIS

4.1 Relevant Laws, Regulations, and Standards

- The Digital Personal Data Protection Act, 2023 (DPDP Act), India's principal data protection legislation governing consent, processing, and the rights of data principals
- Reserve Bank of India (RBI) Know Your Customer (KYC) Master Direction and Officially Valid Document (OVD) requirements referenced in the Policy's KYC data provisions
- Information Technology Act, 2000 and associated Sensitive Personal Data or Information (SPDI) Rules, 2011, historically applicable to data security practices of Indian companies
- Sector-specific regulatory frameworks applicable to ABCL's lending, insurance, and investment businesses, which impose additional KYC, authentication, and record-keeping obligations

4.2 How the Policy Supports Legal and Regulatory Compliance

The Policy's detailed categorisation of KYC Data, and its explicit alignment with RBI's Officially Valid Documents framework, directly supports ABCL's compliance with RBI's KYC and anti-money laundering requirements. Its provisions on disclosure to authorities such as UIDAI and CKYCR for authentication purposes reflect compliance with the Central KYC Registry framework, while its structured approach to consent, user rights (review, correction, erasure, withdrawal), and the appointment of a named Data Protection Officer are consistent with the core obligations expected under India's Digital Personal Data Protection Act, 2023.

4.3 Governance Mechanisms Associated with the Policy

Governance of the Policy is anchored around a formally named Data Protection Officer, who serves as the designated contact point for privacy-related queries, rights requests, and complaints, with a published email address and postal address for accountability. The Policy commits to a defined response timeline of 30 days for user rights requests, and includes a formal mechanism for periodic review and amendment of the Policy, with changes to be posted on the website and, where legally required, separately notified to users.

5. POLICY EVALUATION

5.1 Strengths of the Policy

- Highly detailed and specific categorisation of the types of personal data collected, going well beyond generic statements to name Identity, Profile, Financial, KYC, Technical, and Usage Data separately
- Clear, named Data Protection Officer with published contact details, offering a genuine and accountable channel for privacy grievances and rights requests
- Explicit statement that the company does not access contacts, call logs, or telephony functions, and does not collect biometric data, which is a meaningful, specific privacy commitment rather than a vague assurance
- Defined 30-day response timeline for user rights requests, giving users a concrete service standard rather than an open-ended promise

5.2 Effectiveness and Practicality of Implementation

The Policy's structure, moving systematically through data collected, methods of collection, purposes of use, disclosure, retention, and security, mirrors the structure recommended under the DPDP Act and international data protection frameworks, suggesting a genuine effort at compliance-driven design rather than a superficial legal disclaimer. The explicit linkage between KYC data categories and RBI-recognised Officially Valid Documents shows practical integration between the Privacy Policy and ABCL's actual regulatory onboarding processes, rather than the two operating in isolation.

5.3 Gaps, Limitations, and Areas for Improvement

- The Policy permits fairly broad sharing of personal data with "other corporate entities, affiliates, partners, merchants and other third parties," without always specifying named categories of recipients beyond the lending-related third-party list, which limits a user's ability to fully understand who accesses their data

- Consent for marketing and joint marketing purposes appears bundled with consent for core service delivery in several places, and while users can opt out of marketing communications, service-related and transactional messages continue regardless, which may not fully reflect the DPDP Act's expectation of purpose-specific, granular consent

- The Policy does not specify a maximum retention period in years for most categories of data, instead relying on general criteria ("as long as necessary"), which offers flexibility but limited concrete assurance to users

- There is no published information in the Policy on data breach notification timelines or a public record of past incidents, which would enhance transparency and accountability

5.4 Comparison with Good Corporate Practice

ABCL's Policy compares favourably with baseline regulatory expectations by naming a Data Protection Officer and defining specific user rights, consistent with global good practice

frameworks such as the GDPR-style rights-based approach that has influenced India's DPDP Act. However, leading global financial institutions often go further by publishing standalone data breach notification protocols, more granular consent toggles for each category of data use, and periodic public transparency reports on data requests received from law enforcement, areas where ABCL's public-facing Policy could be strengthened.

6. BUSINESS RELEVANCE

6.1 Importance in Modern Business

For a large financial services conglomerate offering loans, investments, insurance, and payments through digital platforms to millions of customers, a robust Privacy Policy is not merely a legal formality but a foundational element of digital trust. As financial services increasingly move online and rely on KYC data, transaction history, and behavioural analytics, customers' willingness to share sensitive financial and personal information depends directly on their confidence in how that data will be collected, used, and protected.

6.2 Impact on Employees, Customers, and Stakeholders

- Customers: Clear data rights (review, correction, erasure, consent withdrawal) empower customers to control their personal information, while defined KYC data handling builds confidence in the onboarding process

- Employees: Staff handling customer data are guided by defined security, retention, and disclosure rules, reducing the risk of inadvertent non-compliance in day-to-day operations

- Business Partners and Third Parties: The Policy's disclosure provisions set clear expectations for how shared data may be used by lending partners, KYC authorities, and other affiliates, supporting more structured data-sharing relationships

6.3 Contribution to Risk Management, Ethics, Compliance, and Governance

The Privacy Policy functions as a critical risk management tool, reducing ABCL's exposure to regulatory penalties under the DPDP Act and sector-specific RBI regulations, while its fraud prevention and detection provisions directly support the company's broader risk and compliance

objectives. By defining data security controls and a formal DPO-led governance structure, the Policy also strengthens ABCL's overall digital governance framework, an increasingly critical component of corporate governance for any large financial institution operating extensively online.

7. RECOMMENDATIONS

- Provide more granular, purpose-specific consent options, allowing users to separately consent to core service delivery, marketing communications, and third-party data sharing, rather than a broadly bundled consent framework

- Publish clearer, category-specific data retention periods (in months or years) wherever feasible, rather than relying solely on the general "as long as necessary" standard

- Publish a dedicated data breach notification protocol, including expected notification timelines to affected users and regulators, to strengthen transparency and align with global best practice

- Expand public disclosure of the categories, or names, of third parties and affiliates with whom personal data is routinely shared, beyond the existing lending-related third-party list

- Introduce periodic public transparency reporting, such as an annual summary of data subject rights requests received and resolved, to build stakeholder trust and demonstrate ongoing accountability

8. CONCLUSION

8.1 Overall Assessment and Key Learnings

ABCL's Privacy Policy provides a detailed, well-structured framework for the collection, use, and protection of personal data across a very large and diverse group of financial services entities. Its clear categorisation of data types, defined user rights, named Data Protection Officer, and explicit commitments regarding sensitive data such as biometrics and phone contacts demonstrate a genuine, practically implemented approach to privacy governance, appropriate for

a company operating in a highly regulated, digitally driven financial sector. At the same time, this review highlights that broader data-sharing language, bundled consent practices, and limited disclosure around retention periods and breach protocols remain meaningful areas for improvement.

More broadly, this review demonstrates that in a data-driven financial services environment, an effective Privacy Policy must do more than describe legal obligations in the abstract; it must translate data protection principles into specific, actionable commitments, clear consent mechanisms, and accessible rights, that customers can genuinely understand and rely upon.

9. REFERENCES

- Aditya Birla Capital Limited, Privacy Policy, available at: www.adityabirlacapital.com/privacy-policy
- Aditya Birla Financial Services (ABFL), Data Privacy Policy, available at: smefinance.adityabirlacapital.com
- The Digital Personal Data Protection Act, 2023 (India)
- Reserve Bank of India, Know Your Customer (KYC) Master Direction and Officially Valid Documents (OVD) framework
- Aditya Birla Capital Limited, "Company Profile" and "About Us," available at: www.adityabirlacapital.com